

BREYER, J., dissenting

Much later, in *Bell v. Hood*, 327 U. S. 678, 684 (1946), the Court wrote that,

“where federally protected rights have been invaded, it has been the rule from the beginning that courts will be alert to adjust their remedies so as to grant the necessary relief.”

See also *Bivens*, 403 U. S., at 392 (citing opinions of Justices Cardozo and Holmes to similar effect).

The *Bivens* Court reiterated these principles and confirmed that the appropriate remedial “‘adjust[ment]’” in the case before it was an award of money damages, the “remedial mechanism normally available in the federal courts.” *Id.*, at 392, 397. Justice Harlan agreed, adding that, since Congress’ “general” statutory “grant of jurisdiction” authorized courts to grant equitable relief in cases arising under federal jurisdiction, courts likewise had the authority to award damages—the “traditional remedy at law”—in order to “vindicate the interests of the individual” protected by the Bill of Rights. *Id.*, at 405–407 (opinion concurring in judgment).

Second, our cases have recognized that Congress’ silence on the subject indicates a willingness to leave this matter to the courts. In *Bivens*, the Court noted, as an argument favoring its conclusion, the absence of an “explicit congressional declaration that persons injured by a federal officer’s violation of the Fourth Amendment may not recover money damages from the agents.” *Id.*, at 397. Similarly, in *Davis*, the Court stressed that there was “no evidence . . . that Congress meant . . . to foreclose” a damages remedy. 442 U. S., at 247. In *Carlson*, the Court went further, observing that not only was there no sign “that Congress meant to pre-empt a *Bivens* remedy,” but there was also “clear” evidence that Congress intended to preserve it. 446 U. S., at 19–20.

Third, our *Bivens* cases acknowledge that a constitutional tort may not lie when “special factors counse[l] hesitation” and when Congress has provided an adequate alternative